EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 43724/05
SVERDLOVSK REGIONAL BRANCH OF RUSSIAN LABOUR PARTY
against Russia

The European Court of Human Rights (Third Section), sitting on 3 March 2020 as a Committee composed of:

Paulo Pinto de Albuquerque, *President,*
Helen Keller,
María Elósegui, *judges,*
and Olga Chernishova, *Deputy Section Registrar,*

Having regard to the above application lodged on 1 November 2005,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

1. The case originated in an application (no. 43724/05) against the Russian Federation lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") by the Sverdlovsk regional branch of the "Russian Labour Party" ("the applicant" or "the applicant branch") on 1 November 2005. The applicant was represented before the Court by Mr R. Kachanov and Mr A. Burkov, lawyers practising in Yekaterinburg.

2. The Russian Government ("the Government") were represented initially by Ms V. Milinchuk, the Representative of the Russian Federation to the European Court of Human Rights, and then by her successor in that office, Mr M. Galperin.

A. Warnings issued for non-disclosure of applications for membership

3. The applicant is the Sverdlovsk regional branch of the political party "Russian Labour Party" (*Свердловское областное региональное отделение политической партии «Российская партия труда»*) registered in Yekaterinburg[1] on 19 September 2002. At the time of registration the applicant had 126 members.

4. On 20 March 2003 the Sverdlovsk Regional Department of the Ministry of Justice ("the Justice Department") notified the applicant of a forthcoming inspection and requested it to produce documents confirming the number of registered members of the regional branch.

5. The inspection was carried out between 18 and 28 April 2003.

6. The applicant submitted the members' registration journal (*журнал учета членов отделения*). The Justice Department insisted that original individual applications for membership be produced.

7. On 28 April 2003 the Justice Department prepared the inspection report, mentioning the fact that the applicant had not produced the requested documents confirming the number of its members, namely the applications for membership submitted by individuals.

8. On 21 November 2003 and 19 January 2004 the Justice Department issued warnings to the applicant regarding its failure to comply with the Political Parties Act. The warning of 19 January 2004 was subsequently annulled on 1 February 2005.

9. The applicant challenged the warning of 21 November 2003 before a court, claiming that the requirement to submit individual applications for membership had been unlawful because they contained confidential information about party members.

10. On 3 March 2005 the Kirovskiy District Court of Yekaterinburg, presided over by Judge P., dismissed the applicant's claim, finding as follows:

> "The Justice Department holds the view that the documents [confirming the number of members] include: individual applications for membership (section 23 of the Political Parties Act), minutes of meetings of the party management concerning admission of new members in accordance with the charter, and member registration documents. The court considers it possible to agree with such interpretation of [section 38] of the Political Parties Act...
>
> Although the court accepts that whereas, by virtue of section 18 of the Political Parties Act, it was sufficient to submit a document confirming the number of members of a political party (including the list and the minutes), section 38 of the Political Parties Act – on the basis of which the inspection was conducted and the warning issued – provides for an inspection of the party's activities carried out by way of studying the documents confirming the number of [its] members. Such inspection

[1] Although the city is now called Yekaterinburg, the surrounding region has retained its Soviet name – the Sverdlovsk Region.

must be periodic, it is conducted with a view to establishing grounds for application of sections 39 to 42 of the Political Parties Act [governing suspension of activities and dissolution of political parties]; otherwise, a political party, once established, would never be subject to liquidation.

Accordingly, the Justice Department was entitled – when carrying out the inspection in accordance with section 38 – to verify the existence of membership applications. Such applications were to indicate all the elements relevant for determining whether the person could be a member of the party (age, citizenship, residence in the region) and whether the requirements of section 23 were complied with.

The regional branch wrongly considers that it was sufficient to submit the members' registration journal listing the names and addresses of party members and dates of their admission. The journal does not contain information on either passport details, citizenship or age of listed individuals, or on their membership of other parties.

In refusing to submit the membership applications, the regional branch referred to the fact that they contained confidential information which may not be lawfully disclosed. However, in their complaint to the Supreme Court of the Russian Federation, the regional branch stated that 'each membership application contains the following data: first and last names, passport details, date and place of birth, place of residence, contact details', that is, the information described in section 23 of the Political Parties Act. If, acting in breach of the above provision, the regional branch asked potential members to produce some other, truly confidential information, that may not serve as a ground for refusing to produce membership applications to the Justice Department for the inspection in accordance with section 38 ..."

11. The applicant branch lodged an appeal. It submitted, in particular, that the claim had been heard by Judge P. from the Leninskiy District Court, whereas it should have been examined by a judge of the Kirovskiy District Court.

12. On 12 May 2005 the Sverdlovsk Regional Court dismissed the appeal. It noted that the composition of the District Court had been lawful because on 1 March 2005 Judge P. had been seconded to the Kirovskiy District Court for a period of two months. The appellate court also dismissed the applicant's argument that the requirement to submit membership applications had amounted to disclosure of confidential information. It found that the requirement to provide such information to a competent authority for the purposes of verification was lawful.

B. Other developments

13. The Government have informed the Court that on 20 April 2005 a congress of the Russian Labour Party amended its charter and changed its name to the Russian Patriots Party. Those changes were officially registered on 25 July 2005. Furthermore, on 30 January 2006 the Sverdlovsk Justice Department entered into the State register the information on the new name of the applicant branch and on the identity of its new head, Mr Z.

14. The Government have also informed the Court that an inspection of the Sverdlovsk branch of the Russian Patriots Party conducted in 2006

revealed no breaches of the applicable legislation. As of 2007 the branch had 512 members.

C. Relevant domestic law

15. Article 48 § 1 of the Civil Code provides that legal person is an organisation which has allotted property, can acquire and exercise civil rights and obligations and can sue and be sued in court.

16. The Political Parties Act (Federal Law no. 95-FZ of 11 July 2001) provided, at the material time, as follows:

Section 15. State registration of political party and its regional branches

"1. Political party and its regional branches are subject to State registration in accordance with the Federal Law On State Registration of Legal Persons and Private Entrepreneurs taking into account the special procedure for State registration of a political party and its regional branches established by the present Act. The political party and its branches exercise their activity in full, e.g. as legal persons, from the moment of State registration. The document corroborating the registration of the political party or of its regional branch is a document attesting to the entry [thereof] into the State Unified Register of Legal Persons."

Section 18. Documents submitted for State registration of a regional branch of the political party

"1. The following documents must be submitted for State registration of a regional branch of a political party:

...

(d) a certified copy of the minutes of the conference or general assembly of the regional branch, indicating the number of party members in the regional branch ..."

Section 19. Information on registered political parties

"6. The information on members of a political party, provided to the competent agencies, constitutes information with restricted access. Divulgence of such information without the consent of the concerned members of the political party entails responsibility provided for by the legislation of the Russian Federation."

Section 23. Membership of a political party

"1. Membership of a political party shall be voluntary and individual.

2. Citizens of the Russian Federation who attained the age of eighteen may be members of a political party. Foreign citizens, stateless persons, and Russian nationals who have been declared incapable by a judicial decision may not be members of a political party.

3. Admission to membership of a political party is decided upon on the basis of a written application by the citizen of the Russian Federation, in accordance with the procedure set out in the charter.

...

6. A Russian Federation citizen may hold membership of one political party only. A member of a political party may be registered only in one regional branch...”

Section 38. Inspection of activities of political parties

“1. Competent authorities exercise control over compliance by political parties and their regional and structural branches with the Russian Federation laws, as well as over the compatibility of the political party’s activities with the regulations, aims and purposes set out in its charter.

Competent authorities have the right:

(a) to study, on the annual basis, the documents of political parties and their regional branches corroborating the existence of regional branches and the number of their members ...”

Section 39. Suspension of functioning of a political party or its regional branch

“2. If a branch or another structural subdivision of a political party is in breach of the Constitution or [federal laws], the competent authority issues a written warning... listing the specific breaches and setting a time-limit, no shorter than one month, for remedying them. If the breaches have not been made good within the set time-limit and the warning has not been contested in court, the activity of the branch... of the political party may be suspended for up to six months by a [court] decision upon an application of the competent authority.”

COMPLAINTS

17. The applicant branch complained that a formal warning received in connection with its refusal to submit individual applications for membership violated Article 11 of the Convention.

18. It also complained under Article 6 of the Convention that the court proceedings on its complaint concerning a violation of the right to freedom of association had not been fair.

THE LAW

A. Preliminary issues

1. The Government’s objection ratione personae

19. The Government submitted that the Court had no competence *ratione personae* to examine the present application because the applicant branch, being a structural sub-division of the political party, had a limited legal capacity and was unable to introduce an application with the Court without a prior authorisation from the party.

20. The applicant responded that from the moment of State registration both the political party and its regional branches were legal persons with full legal capacity which included, in particular, the right to protect their interests in court and to join the proceedings as the defendant or a third

party. The applicant branch was registered with the regional tax authority on 17 September 2002, and two days later an entry was made in the State register on its establishment as a legal entity. From that day, the applicant branch – in accordance with the provisions of the Civil Code and the Political Parties Act – had all the rights of a legal person. The applicant branch provided copies of the relevant registration certificates. It also provided a copy of a domestic judicial decision delivered against a branch of a political party in unrelated proceedings so as to corroborate its argument that under the domestic law a branch fully enjoys the status of a legal person.

21. The Court observes that according to the certificate of 17 September 2002 issued by the Ministry of Finance the applicant branch was registered as a legal person. Therefore, the Court cannot accept the Government's argument concerning its limited legal capacity under the domestic law, nor does it see any other obstacles that would prevent the applicant from petitioning to the Court as an independent legal entity.

22. The Court therefore dismisses the Government's objection in this part.

2. The Government's request to discontinue the examination of the case

23. Referring to the renaming of the Russian Labour Party into the Russian Patriots Party (see paragraph 13 above), the Government submitted that, as a consequence, the applicant branch had ceased to exist as such. They further claimed that they had no information about the Russian Patriots Party's intention to pursue the application and that, accordingly, it must be struck out of the list of the Court's cases under Article 37 § 1 (a) of the Convention.

24. The applicant submitted that the application had been duly lodged while the party was called the Russian Labour Party.

25. The Court observes that the application was duly submitted by the head of the applicant branch, Mr B., competent to act on its behalf. The Court takes note of the applicant's change of name in 2005. It observes, however, that this change did not affect in any way the validity of the present application. It further observes that the Court has never received a request from the applicant – either under its former or current name – to withdraw the application.

26. The Court therefore dismisses the Government's request to discontinue the examination of the case.

B. Alleged violation of Article 11 of the Convention

27. The applicant complained that it had been given a formal warning in connection with its refusal to submit individual applications for

membership, in breach of Article 11 of the Convention, which reads as follows:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others ..."

1. The parties' submissions

28. The Government contested that argument. They contended, firstly, that, given the absence of suspension of the party's activity pursuant to Section 39 of the Political Parties Act, and, to the contrary, in the light of the increase of its membership between 2003 and 2007, there had been no interference with the applicant's rights under Article 11. The Government submitted, however, that should the Court decide that there had been an interference, it had been in accordance with the law, that is with the Political Parties Act; it pursued a legitimate aim of verifying the accuracy of the information provided by the political party, which is required to ensure public safety and protect the rights and freedom of others; and was necessary in a democratic society.

29. The Government pointed out that, according to the applicant's charter as in force at the time of the inspection conducted between 18 and 28 April 2003, written application for membership was to be submitted to the party's branch according to the prospective member's place of residence. They further pointed out that under Section 23 of the Political Parties Act Russian citizens over the age of 18 could be members of a political party, and one person could be a member of only one regional branch of a party according to his/her place of residence. According to Sections 15 § 5 and 38 of the Political Parties Act, it is the responsibility of the Federal Registration Service (and previously of the Ministry of Justice) to verify the accuracy of the information presented in the party's charter documents as well as to verify whether its activity corresponds to its charter.

30. The Government further maintained that providing information about the party members' names, surnames, dates of birth and places of residence to a State authority competent to register and monitor political parties did not amount to disclosure of confidential information. Furthermore, under Section 19 § 6 of the Political Parties Act the information provided to such authority constitutes information with restricted access which cannot be disclosed without the consent of the party members concerned.

31. The Government pointed out that given the importance of political parties' role in the political life of the society, it was important to ensure the accuracy of the information concerning the number of its members. Otherwise, the parties could declare more members than they actually had, which could result in unlawful participation in elections at different levels and other consequences capable of leading to disturbances of the political fabric of society. Furthermore, it was important to ensure the accuracy of the above information to prevent the party from registering as its members people who never wished to be such, thus preventing the breach of the principle of voluntary membership in a political party.

32. The applicant branch contested the Government's argument that the interference was "in accordance with the law". In its view, whereas Section 38 § 1 of the Political Parties Act does allow the competent authorities to study the documents of political parties and their regional branches confirming the number of their members, such documents should be limited to members' registration journal and do not include individual applications for membership. It pointed out that the existence of an application for membership did not automatically imply the person's acceptance as a member of a political party; hence the numbers based on applications for membership might be incorrect. Furthermore, in its view, the State authorities, having requested specific documents, outstepped their boundaries as far as interpretation of the domestic law is concerned. In the applicant's view, it is for the party to decide which documents it has to provide in order to corroborate the number of its members. Moreover, by requesting documents containing confidential information the authorities breached the right to association. Thus, in the applicants' view, the request for applications for membership was not "in accordance with the law" and constituted disproportionate interference with the party's internal matters.

2. The Court's assessment

33. The Court has confirmed on a number of occasions the essential role played in a democratic regime by political parties enjoying the freedoms and rights enshrined in Article 11 of the Convention. Political parties are a form of association essential to the proper functioning of democracy. In view of the role played by political parties, any measure taken against them affects both freedom of association and, consequently, democracy in the State concerned (see *Refah Partisi (the Welfare Party) and Others v. Turkey* [GC], nos. 41340/98, 41342/98, 41343/98 and 41344/98, § 87, ECHR 2003-II, and *Republican Party of Russia v. Russia*, no. 12976/07, § 78, 12 April 2011). The Court will therefore examine whether the warning issued to the applicant branch by the Justice Department and upheld by the domestic courts constituted an interference with its right to freedom of association, and if so, whether that interference was justified.

(a) Whether there was an interference

34. The Government argued that in the absence of suspension of the applicant's activity pursuant to Section 39 of the Political Parties Act, there had been no interference with its under Article 11.

35. The Court notes that under Section 39 § 2 of the Political Parties Act if a branch of a political party is in breach of the Constitution or federal laws, the competent authority may issue a written warning. If the breach is not remedied, the competent authority may apply to a court seeking the suspension of the branch's activity for up to six months.

36. The Court observes that in the case at hand the applicant branch's activity has not been suspended by the court in the light of the warning it received on 21 November 2003. Nevertheless, for the purposes of the foregoing analysis, it will assume that the warning did constitute an interference with the applicant's rights guaranteed by Article 11 of the Convention.

(b) Whether the interference was lawful

37. The applicant argued that the interference had not been "in accordance with the law" because, in its view, the domestic authorities overstepped the boundaries of interpretation of the domestic law having concluded that Article 38 § 1 of the Political Parties Act allowed them to request political parties to provide individual membership applications.

38. The Court notes that the warning of 21 November 2003 was issued on account of the applicant's refusal to comply with the Justice Department's request to provide applications for membership submitted by individuals. The documents in question were requested by the Justice Department in the course of an inspection conducted under Section 38 of the Political Parties Act. Section 38 § 1 (a) specifically provides the competent authorities with the right to study the documents of political parties and their regional branches corroborating the number of their members. The Kirovskiy District Court of Yekaterinburg, in its decision of 3 March 2005, which was subsequently upheld on appeal, found that such documents may include individual applications for membership.

39. The Court reiterates that it is primarily for the national authorities, notably the courts, to resolve problems of interpretation of national legislation (see *Perez v. France* [GC], no. 47287/99, § 82, ECHR 2004-I). In the absence of any indication of arbitrariness in the domestic courts' interpretation of the national laws, the Court considers that the interference was "prescribed by law" in compliance with Article 11 § 2.

(c) Whether the interference pursued a legitimate aim

40. The Government submitted that the rationale for the interference had been to ensure the accuracy of the information concerning the number of the

party's members. They pointed out that this was important, in order to prevent the parties from registering as its members people who never expressed such a wish, so as, on the one hand, to ensure voluntary membership in a political party and, on the other hand, to prevent a party's unlawful participation in elections.

41. The Court is prepared to accept that the interference pursued the legitimate aim of protecting the rights of others.

(d) Whether the interference was "necessary in a democratic society"

42. When the Court carries out its scrutiny, its task is not to substitute its own view for that of the national authorities, which are better placed than an international court to decide both on legislative policy and measures of implementation, but to review under Article 11 the decisions they delivered in the exercise of their discretion. This does not mean that it has to confine itself to ascertaining whether the respondent State exercised its discretion reasonably, carefully and in good faith; it must look at the interference complained of in the light of the case as a whole and determine whether it was "proportionate to the legitimate aim pursued" and whether the reasons adduced by the national authorities to justify it are "relevant and sufficient". In so doing, the Court has to satisfy itself that the national authorities applied standards which were in conformity with the principles embodied in Article 11 and, moreover, that they based their decisions on an acceptable assessment of the relevant facts (see, *mutatis mutandis*, *United Communist Party of Turkey and Others*, cited above, p. 27, §§ 46-47, and *Refah Partisi (the Welfare Party) and Others*, cited above, § 100).

43. Turning to the facts of the present case, the Court notes that in the preceding paragraphs it has found that the interference in question was "prescribed by law" and pursued one of the legitimate aims provided in Article 11 § 2. It observes that the warning in question did not lead to the suspension of the applicant branch's activity, nor is there any evidence that it has affected such activity otherwise.

44. The Court notes that, according to the applicant, the applications for membership contained confidential information, and the request for its disclosure constituted a disproportionate interference with the applicant branch's internal affairs. In this regard the Court observes, firstly, that the domestic courts accepted the Justice Department's reasoning that the registration journal provided insufficient information for the purposes of the inspection it was conducting and that, in order to ensure the accuracy of the information about the party's members, it needed to verify the individual applications for membership. The appellate court dismissed the applicant's contention that the information in question was confidential and found the request to provide in to a competent authority lawful. The Court has not been provided with any arguments or evidence that would enable it to depart from these findings.

45. The Court notes, furthermore, that under Section 19 § 6 of the Political Parties Act the information on members of a political party, provided to the competent agencies, constitutes information with restricted access that cannot be divulged without the consent of the party members concerned. Therefore, the domestic law provides sufficient safeguards against the further divulgence of such information.

46. Insofar as the applications for membership were requested to check that the party complied with the minimum membership requirement, the Court is mindful that in *Republican Party of Russia v. Russia*, cited above, §§ 109-20, it found a violation of Article 11 on account of a dissolution of a political party for its failure to comply with the minimum membership requirement. It notes, however, that the circumstances of the present case differ significantly in that, firstly, unlike *Republican Party of Russia*, cited above, not only was the applicant branch not dissolved, the warning it received was not followed up by a request to suspend its activities. Secondly, apart from the one inspection at issue conducted between 18 and 28 April 2003 (see paragraph 5 above), the applicant branch made no complaints in relation to other inspections, if any, that it might have had to undergo, and the Court is thus unable to find that it was subjected to "frequent and comprehensive checks and a constant threat of dissolution on formal grounds" (*cf. Republican Party of Russia*, cited above, § 115).

47. Accordingly, the Court considers that the interference was proportionate to the legitimate aim pursued. It also finds that the domestic courts thoroughly examined the applicant's complaint and put forward relevant and sufficient reasons justifying the interference with its Article 11 rights.

(e) Conclusion

48. Having regard to the foregoing, the Court finds that the complaint is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 (a) and 4 of the Convention.

C. Other alleged violations of the Convention

49. The applicant complains under Article 6 of the Convention that its complaint had been examined by Judge P. from the Leninskiy District Court rather than by a judge of the Kirovskiy District Court and that the courts did not address its argument about a violation of the right to freedom of association.

50. The Court notes that in its decision of 12 May 2005 the Sverdlovsk Regional Court dismissed the applicant's claim that the composition of the first instance court was unlawful. It found, in particular, that at the relevant time Judge P. had been seconded to the Kirovskiy District. The Court has

not been provided with any evidence that would enable it to depart from these findings.

51. Furthermore, in paragraph 47 above the Court has found that the domestic courts thoroughly examined the applicant's complaint.

52. Accordingly, this complaint is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 (a) and 4 of the Convention.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 26 March 2020.

Olga Chernishova Deputy Registrar	Paulo Pinto de Albuquerque President